

Podleszanski et al. v. Medley et al.

[Indexed as: Podleszanski v. Medley]

88 O.R. (3d) 294

Ontario Superior Court of Justice,

Bryant J.

November 6, 2007

Insurance -- Automobile insurance -- No-fault regime --
Threshold -- Plaintiff psychologically volatile and vulnerable
to stress -- Plaintiff suffering chronic pain as result of soft
tissue injuries which made it impossible for him to continue in
his former physically demanding job -- Plaintiff accepting
unskilled minimum-wage job -- Plaintiff suffering anxiety,
depression and loss of sense of self-worth -- Threshold in s.
267.5(5) of Insurance Act satisfied -- Insurance Act, R.S.O.
1990, c. I.8, s. 267.5(5).

The plaintiff suffered soft tissue injuries to his neck,
shoulder and back in a motor vehicle accident. The injuries did
not resolve within the usual few months; instead, the plaintiff
continued to experience chronic neck and back pain, as well as
anxiety, depression and insomnia. Before the accident, he
worked in construction. The work was physically demanding, and
the plaintiff never missed a shift. He was unable to return to
that work after the accident, and after trying unsuccessfully
to retrain himself, he accepted an unskilled, minimum wage job
at a car wash. A psychologist who treated the plaintiff stated
that the plaintiff was a volatile person who was vulnerable to
stress, and that he had deteriorated physically and mentally
since the accident, losing his self-esteem and self-worth. The
defendant brought a motion at trial to determine whether the
plaintiff met the threshold in s. 267.5(5) of the Insurance
Act.

Held, the threshold was met.

The fact that the plaintiff's soft tissue injuries were not objectively confirmed did not preclude recovery. His psychological condition was the result of the automobile accident and his particular vulnerability. His physical and psychological [page295] impairment interfered with his ability to continue with his former employment or a similar physically demanding job and would continue to do so for the foreseeable future. He sustained a permanent serious impairment of an important physical and psychological function as required by s. 267.5(5) of the Act.

Cases referred to

Meyer v. Bright (1993), 15 O.R. (3d) 129, [1993] O.J. No. 2446, 48 M.V.R. (2d) 1 (C.A.) [Leave to appeal refused [1993] S.C.C.A. No. 540, 17 O.R.(3d) xvi] (sub nom. Dalgliesh v. Green)

Statutes referred to

Family Law Act, R.S.O. 1990, c. F.3

Insurance Act, R.S.O. 1990, c. I.8, s. 267.5(5) [as am.]

MOTION to determine whether a plaintiff's injuries met threshold in s. 267.5(5) of the Insurance Act.

M. Elkin, for plaintiffs.

E. Zeldin, for defendants.

Endorsement by BRYANT J.: --

The Claim and Threshold Motion

[1] Mr. Podleszanski, the plaintiff, was operating a motor vehicle on December 6, 2002 when his vehicle was rear-ended by a motor vehicle operated by the defendant Mr. Medley. He claimed the following: general damages for pain and suffering; past lost income; and future loss of income. Ms. Podleszanska, the injured plaintiff's spouse, claimed damages under the Family Law Act, R.S.O. 1990, c. F.3 ("FLA").

[2] The judge and jury trial was heard in late April 2007. The jury awarded \$25,000 for general damages and \$95,000 for loss of past income. The jury did not award any damages for loss of future income. The jury awarded \$5,000 to Ms. Podleszanska for her FLA claim.

[3] Counsel for the defendant made a threshold motion while the jury was deliberating. Upon receipt of the jury verdict, counsel advised they would inform the court at a later date if the parties required a decision on the threshold motion. Counsel notified the court that they required a decision on the threshold motion and the form of the judgment. Counsel completed their written submissions in July 2007.

Issue

[4] The issue is whether the plaintiff has proven on a balance of probabilities that he sustained a permanent and serious impairment of an important physical, mental or psychological [page296] function within the meaning of s. 267.5(5) of the Insurance Act, R.S.O. 1990, c. I.8 as am. (Bill 59). Section 267.5(5) states in part as follows:

267.5(5) Despite any other Act and subject to subsection (6), the owner of an automobile, the occupants of an automobile . . . are not liable in an action in Ontario for damages for non-pecuniary loss, including damages for -non-pecuniary loss under clause 61(2)(e) of the Family Law Act, from bodily injury or death arising directly or indirectly from the use or operation of the automobile, unless as a result of the use or operation of the automobile

the injured person has died or has sustained:

- (a) permanent serious disfigurement; or
- (b) permanent serious impairment of an important physical, mental or psychological function.

Pre-Accident Employment

[5] Mr. Podleszanski came to Canada in 1989 from Poland with \$800 in savings and became a landed immigrant. He worked and saved sufficient funds to bring his wife and son to Canada in June 1991. He worked as an apartment building superintendent and did some small construction jobs. He was injured and received Workman's Compensation as a result of falling off a scaffold and the injuries appeared to be resolved at the time of the accident. Mr. Podleszanski commenced employment with Pave-All Construction in 1998. He worked as a shovelman on the asphalt crew for approximately four and one-half years until he was injured in the motor vehicle accident on December 6, 2002.

[6] Mr. Boccia, his supervisor at Pave-All, said that Mr. Podleszanski was a very good and reliable worker. In 1998, 1999, 2000, 2001 and 2002, Mr. Podleszanski worked the following hours: 1,229 (1999), 1,793 (2000), 2,140 (2,000) and 1,580 (2002) and earned \$50,750, \$65,333, \$62,126 and \$47,135 for the years 1999-2002. He received less wages in 2002 because he was training to become a foreman and did not get overtime on that crew. He normally worked from early spring to December with some additional hours doing snow removal. Some months he worked more than other months, for example, he worked 368 hours in September 2000. Mr. Boccia said that Mr. Podleszanski never missed a shift in four and one-half years.

[7] Mr. Boccia said that the plaintiff was often the first worker at the yard in the morning. Mr. Podleszanski worked his way up to the first crew because this crew received more work and was the last crew laid off for the winter. He said that the plaintiff wanted to improve his position and become a foreman. The plaintiff performed the job as lead hand on a small patching crew. [page297] Prior to the accident, Mr. Boccia and

his wife were invited to the plaintiff's house for dinner on one occasion and the couple were sociable. He last saw the plaintiff at a coffee shop about a year before his attendance at the trial. When Mr. Boccia saw Mr. Podleszanski outside the courtroom he did not recognize him because Mr. Podleszanski's appearance had changed completely.

[8] Mr. Twojak commenced work as a shovelman at Pave-All in July 2001. He said that the plaintiff was a hard worker. On Mr. Twojak's first day on the job, he was exhausted before the shift ended. Mr. Podleszanski sent him to the truck to rest while the plaintiff continued without his assistance. Mr. Twojak said he became an operator because the shovelman position was too physically demanding.

Medical Evidence

[9] Mr. Podleszanski suffered a soft tissue injury as a result of the collision. He testified that he suffered pain to his right shoulder, lower back and buttock area and there was radiating pain to his right leg and hand which caused numbness. The consensus medical opinion was that most persons who have a whiplash injury recover within several months of the accident but that a small percentage of persons continue to experience chronic pain. There was no significant dispute that he suffered injuries from the accident, but the experts disagreed whether the plaintiff was able to return to work at his old job.

[10] The plaintiff relied upon the report of Dr. Mascarenhas, the records of Dr. Piatek, his family doctor, and the report and evidence of Dr. Celinski to support his claim for chronic pain and its sequela. The defendant relied upon the reports of Dr. French, Dr. Czok, Dr. Silverstein and Dr. Notkin and the evidence of the latter two physicians. The physicians relied upon by the respective parties gave contradictory opinions as to whether Mr. Podleszanski suffered permanent impairment of a physical or psychological function as a result of the accident.

[11] Mr. Podleszanski said that he hurt his chest, the area behind his right knee and had a headache after the accident. He drove part way home and became dizzy and called his cousin to

pick him up. He was unable to contact him so he drove home very slowly using the back roads. Mr. Podleszanski was angry about the accident and his pain and he was anxious about going to work the next day. He called Dr. Piatek, his family doctor, and told him about his injuries. Dr. Piatek told him to go to the emergency department of a hospital. The following day Mr. Podleszanski went to William Osler Hospital in Brampton and was seen by a physician. He was discharged the same day. [page298]

[12] Dr. Piatek's records for the pre-accident and post-accident periods were filed as exhibits. Dr. Piatek first saw Mr. Podleszanski after the accident on December 9, 2002. The family physician documented the plaintiff's complaints attributed to the accident, including his fear of driving a car. The family doctor diagnosis was that Mr. Podleszanski suffered a whiplash injury. The treatment plan was physiotherapy and pain medication. One week later on December 17, 2002, Mr. Podleszanski complained of neck pain, pain along the spine and lower back pain as well as other medical problems.

[13] In June 2003, Dr. Piatek referred Mr. Podleszanski to Dr. Celinski for psychological therapy due to the car accident. Mr. Podleszanski attended many sessions with Dr. Celinski that his own insurer Liberty Mutual paid for. After the initial treatment plan was completed, Dr. Celinski recommended further therapy and the plaintiff's insurer funded additional therapy. Dr. Celinski said that the plaintiff suffered from anxiety, depression and insomnia in addition to his neck and back pain. The plaintiff also informed him of his strained relationship with his family. Dr. Celinski's main objective was to get Mr. Podleszanski to deal with his physical and mental health and return to the workforce.

[14] Dr. Celinski's opinion in his August 2006 report was that Mr. Podleszanski suffered soft tissue injuries which caused him significant pain and disability. He found that Mr. Podleszanski partially recovered, but that he was left with some residual problems after reaching a plateau. He opined that the plaintiff was under stress and became more depressed in 2006 because of his failure at readjustment.

[15] It was Dr. Celinski's opinion that Mr. Podleszanski suffered from chronic pain which he defined as pain lasting more than six months. He said that the chronic pain precluded Mr. Podleszanski from performing heavy physical labour. He said the treatment was successful because Mr. Podleszanski had moved on to take employment at the car wash which was compatible with his limitations.

[16] Dr. Silverstein, a retired orthopedic surgeon, conducted a defence medical on August 12, 2004 at his office. Dr. Silverstein interviewed Mr. Podleszanski and conducted a physical examination of the upper and lower spine area, the neck and sacrum and the upper and lower extremities on August 12, 2006. Dr. Silverstein said that the plaintiff may have suffered a soft tissue strain at the neck area and some bruising at his sacrum. He opined that these injuries had long since healed. Dr. Silverstein said there may have been some mild injury to Mr. Podleszanski's right knee. It was his opinion that the complaints were out of proportion to the extent of [page299] the initial injuries and out of proportion to the length of time since the accident. Dr. Silverstein opined that he could not identify any physical injuries to explain Mr. Podleszanski's ongoing complaints. He did not refute Mr. Podleszanski's claim of pain or depression, but opined upon reviewing portions of the surveillance videotapes that the complainant could return to his former job.

[17] Dr. Lyndon Mascarenhas conducted a medical on March 30, 2006, at the request of plaintiff's counsel. He is a specialist in assessing disabilities. He took a history from Mr. Podleszanski, conducted a physical examination and reviewed the reports of other physicians. He did not find any physical abnormalities. It was his opinion that Mr. Podleszanski "was an individual who has pain focused behaviour and chronic pain syndrome" which prevented him from performing his previous work at Pave-All or at California Cleaners, a janitorial service company.

[18] Dr. Silverstein and Dr. Mascarenhas reviewed most of the same information and conducted similar examinations, but

reached different medical conclusions whether Mr. Podleszanski had chronic pain syndrome or could return to work. Neither Dr. Silverstein nor Dr. Mascarenhas were treating physicians, but were retained to provide expert opinions for the lawyers representing the plaintiff and defendant respectively. There is no basis for finding one of these expert's opinion was more reliable or persuasive than the other.

[19] Dr. Notkin, a psychiatrist, was retained to conduct a psychiatric defence medical. The initial psychometric testing took almost 8 and one-half hours. The second day was five hours including breaks and the third day was 4 and one-half hours. On the third day, Mr. Podleszanski attended at the office with an articling student who remained in the patient waiting room. Mr. Podleszanski believed he was being mistreated by the psychiatrist and requested support. Mr. Podleszanski was very uncomfortable in this environment. It was his evidence that Dr. Notkin treated him differently on the third day when the student was in the waiting room. The length and type of psychiatric examination and testing conducted by Dr. Notkin of a person of Mr. Podleszanski's intellect and cultural background rendered Dr. Notkin's assessment to be of little value to the court.

Videotapes and Credibility

[20] The surveillance videotapes showing the plaintiff on the roof of his old house and assisting the contractor lay sod at his new house supported the position that the plaintiff was able to work at a physically demanding job. However, the video showing the plaintiff shovelling snow during a snow storm and carrying [page300] out cardboard did not show he was capable of returning to work. The blowing snow was light and the shovelling required little physical strength for a limited period. Similarly, the handling of the cardboard and kitchen garbage did not show that Mr. Podleszanski could do a physically demanding job in the construction business on a full-time basis.

[21] The plaintiff provided incomplete medical histories and background information to some of the doctors which undermined

his credibility.

Post-Accident Employment Opportunities and Work

[22] Mr. Podleszanski took a course to become a real estate agent at the end of 2003. He failed the exams. He paid \$3,000 to take a course to become a house inspector. He went to a job site but could not remember how to do a proper inspection. He was not suited for this job. These courses were recommended to the plaintiff by a person at the DAC centre. He conceded that he was ill-suited for these positions.

[23] Commencing in January 2004 when they determined he could not return to his old construction job, Mr. Podleszanski and Mrs. Podleszanska performed janitorial duties for California Cleaners at the Canadian Tire Distribution Centre. This was a part-time job paying \$2,200 a month. Their son also assisted, but it was determined in January 2005 that the work interfered with his schooling and he did not want to continue assisting his father. Initially, the family earned \$2,000 per month and that increased to \$2,200 when they also cleaned the washrooms. In 2005, Mrs. Podleszanska found another job to work at during the day. Mr. Podlesanski was primarily responsible for the janitorial services at California Cleaners after Ms. Podleszanska worked at her new job. Mr. Podleszanski encountered problems performing this job and eventually he lost that job in the beginning of April 2006.

[24] Mr. Podleszanski commenced working at a Sunoco station in the fall of 2006. He worked from 3:00 p.m. until 9:00 p.m. at the carwash directing cars onto the rails. He worked at this minimum wage job for a while and then abruptly left. He returned some time later and asked for his job back. The station manager said he was a good and reliable worker. He increased his hours after the carwash was closed by working in the area of the gas pumps to prevent owners of cars from driving away without paying. He worked Monday, Wednesday, Thursday, Friday and either or both Saturday and/or Sundays. It is a minimum wage job and it will always be a minimum wage job. The operators of the station accommodate the plaintiff by requiring other workers to [page301] assist him by doing the

heavy lifting. Mr. Podleszanski works between 40-48 hours per week at this job.

[25] There was no dispute of the plaintiff's reported gross earnings in the period 1999 to 2002. The respective expert accountants called by the parties disagreed on the method for calculating the plaintiff's lost wages. The plaintiff's expert calculated the gross lost wages totalled \$153,000. The defendant's expert had three alternative calculations dependant upon different scenarios when the plaintiff was able to return to work: \$34,068, \$60,118 and \$129,441 less deductions for the janitorial position (California Cleaners), Workman's Compensation payments and the gas station job.

The Threshold Test

[26] The Court of Appeal in *Meyer v. Bright* (1993), 15 O.R. (3d) 129, [1993] O.J. No. 2446 (C.A.), set out a three-part test to determine a motion under s. 267.5:

- (1) Has the injured person sustained permanent impairment of a bodily function caused by continuing injury which is physical in nature?
- (2) If the answer to question number 1 is yes, is the bodily function, which is permanently impaired, an important one?
- (3) If the answer to question number 2 is yes, is the impairment of the important bodily function serious?

[27] The plaintiff did not present well as a witness. He was disheveled in appearance, inarticulate at times and it was sometimes difficult to comprehend his answers/conduct. In addition, his behaviour was odd at times and the plaintiff appeared troubled. This was not a case of a normal anxious witness. It was obvious he was not fit to be a foreman at Pave-All to give instructions to other workers.

[28] Dr. Celinski, a treating psychologist, was qualified as an expert. He had a good rapport with the plaintiff and had

worked for many years with injured workers for the Worker's Compensation Board. I found Dr. Celinski's evidence to be the most reliable and persuasive of all the experts concerning the plaintiff's medical condition and his prognosis for returning to work at Pave-All or similar type work. He developed a good relationship with the plaintiff, understood his cultural background and saw him on numerous occasions over a significant period of time in contrast to the experts retained by counsel. These physicians, other than the family doctor, saw the patient for a short period and were [page302] specifically retained to provide an opinion. It was not surprising in this type of litigation that their evidence favoured the party who retained them.

[29] Dr. Celinski's report listed the psychological stressors affecting the plaintiff in his report. He said that Mr. Podleszanski deteriorated physically and psychologically after the accident. As described by Dr. Celinski, the plaintiff lost his self-esteem and self-worth that he had achieved when he was working at Pave-All. He said the plaintiff was a volatile person who was vulnerable to stress and his resilience to stress was characterized as weak. He said that the plaintiff suffers from chronic pain, depression, anxiety and at one point had suicidal ideation. Although the relationship with his wife had some bumps prior to the accident, since the accident Mr. Podleszanski has become estranged from his spouse and children. It was Dr. Celinski's opinion that the therapy was moderately successful and the plaintiff had improved because he had come to the realization that he was unable to return to his previous job or work of a similar nature (heavy labour) and he was getting on with his life by now working at the Sunoco station.

[30] The Court of Appeal in *Meyer v. Bright* (supra, at paras. 19-39) analyzed the meaning of the terms "impaired bodily function and serious permanent impairment of an important bodily function" in the context of the legislative scheme. The court rejected a subjective or objective test or a combined subjective/objective test to determine whether or not a particular bodily function was important. The court stated that whether the bodily function was important depended in part on the individual who was injured. Similarly, the term "serious"

related to the degree of the impairment of the particular individual injured. The court stated that " . . . generally speaking, a serious impairment is one which causes substantial interference with the ability of the injured person to perform his or her daily activities or to continue his or her regular employment" (supra, at para. 34). These are fact-driven issues.

[31] The court does not accept the defendant's submission that the plaintiff's pain and psychological deterioration were not caused by the injuries he suffered as a result of the accident. The court does not accept the defendant's submission that the plaintiff is capable of returning to his old job or similar type work. Notwithstanding the videotape evidence and other concerns expressed above concerning the plaintiff's credibility, the court does not accept the defendant's submission that the plaintiff is faking the degree of his physical symptoms and his psychological impairment for the purpose of this litigation. [page303]

[32] The fact that the plaintiff's soft tissue injuries are not objectively confirmed does not preclude recovery. Rather, the court is required to look at all the evidence. The court accepts Dr. Celinski's opinion that the plaintiff lacks the ability to learn and his linguistic capability is limited. I found the evidence of Mr. Boccia and the evidence of Ms. Hindrichsen, his current employer, together with Dr. Celinski's opinion persuasive. The plaintiff does not have specialized skills or expertise allowing him to work in the non-manual labour field. He was not suitable for sales as he failed miserably in real estate exams and was unable to become a home inspector.

[33] The court finds that the plaintiff suffered soft tissue injuries as a result of the accident which he continued to suffer at the time of the trial. The plaintiff's psychological condition (major depression and general anxiety disorder) was the result of the automobile accident and his particular vulnerability. The physical pain and psychological condition impair the plaintiff's ability to return to his previous position or a similar type position. The plaintiff is capable of minimum wage employment that does not require heavy lifting

(or where his employer accommodates his disability, as is the case with his present employer). The physical and psychological impairment interfered with the plaintiff's ability to continue with his regular employment at Pave-All or at a similar physically demanding job and will continue for the foreseeable future.

[34] The court finds to a balance of probabilities that:

- (1) the plaintiff has sustained permanent impairment of physical and psychological functions;
- (2) the physical and psychological functions were important functions for this plaintiff; and
- (3) the impairment of these important functions was serious.

[35] The court concludes that Mr. Podleszanski satisfies the threshold because he sustained a permanent serious impairment of an important physical and psychological function as required by s. 267.5(5) of the Insurance Act.

Order accordingly. [page304]